

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #15	CCRB Case #: 201700703	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 01/15/2017 5:00 AM	Location of Incident: In front of 4295 Broadway	18 Mo. SOL 7/15/2018	Precinct: 34		
Date/Time CV Reported Fri, 01/27/2017 10:46 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/27/2017 10:46 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Juan Castillo	23545	952557	034 PCT
2. POM Anthony Stabile	17519	961323	034 PCT
3. POM An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Zachary Parker	16351	961071	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Juan Castillo	Force: Police Officer Juan Castillo used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Juan Castillo	Discourtesy: Police Officer Juan Castillo spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Juan Castillo	Force: Police Officer Juan Castillo used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . POM Juan Castillo	Abuse: Police Officer Juan Castillo frisked § 87(2)(b)	E . Substantiated
F . POM Anthony Stabile	Abuse: Police Officer Anthony Stabile frisked § 87(2)(b)	F . Substantiated
G . POM Juan Castillo	Abuse: Police Officer Juan Castillo searched § 87(2)(b)	G . Unsubstantiated

Case Summary

On January 27, 2017, § 87(2)(b) called the CCRB and filed this complaint on his own behalf.

On January 15, 2017, at approximately 5:00 a.m., § 87(2)(b) left a night club and arrived outside the 34th Precinct stationhouse. § 87(2)(b) acknowledged that he was alcohol intoxicated, but he denied being under the influence of any other substance. § 87(2)(b) was not stopped, under arrest, or otherwise in police custody when he arrived outside the stationhouse.

§ 87(2)(b) testified that he approached PO Juan Castillo of the 34th Precinct stationhouse, who was standing outside the front door of the stationhouse, to ask him directions to the subway. § 87(2)(b) alleged that when he asked PO Castillo for directions, PO Castillo pushed him on his left shoulder while saying, “Get the fuck back.” (**Allegations A and B**).

§ 87(2)(b) testified that he asked PO Castillo why he pushed him and cursed at him. § 87(2)(b) alleged that PO Castillo responded by grabbing his left wrist, forcing his arm behind his back, and pushing him to the ground (**Allegation C**). § 87(2)(b) alleged that while he was on the ground, an unknown officer told him to “shut the fuck up.” (**Allegation D**). § 87(2)(b) alleged that PO Castillo then frisked his back pants pockets (**Allegation E**). PO Anthony Stabile of the 34th Precinct, who indicated that he arrived on scene as § 87(2)(b) exited the taxi, testified that he frisked § 87(2)(b) (**Allegation F**). § 87(2)(b) alleged that PO Castillo reached inside his rear pockets and removed two plastic containers containing marijuana (**Allegation G**).

PO Castillo issued one summons to § 87(2)(b) for § 87(2)(b) (Board Review 01). § 87(2)(b) was not arrested, nor was he ever taken into police custody. However, an ambulance was called for § 87(2)(b) because he was alcohol intoxicated, and he was transported from outside the 34th Precinct stationhouse to § 87(2)(b) (Board Review 02). § 87(2)(a) PHL § 18(6)

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation during his in person statement at the CCRB on February 1, 2017, but he rejected it, stating that he intended to file a civil lawsuit.
- A Notice of Claim inquiry was submitted with the New York City Comptroller’s Office on April 24, 2017 (Board Review 04). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 06).
- PO Castillo has been a member of service for four years, and this is the first CCRB complaint made against him.
- PO Stabile has been a member of service for one year, and this is the first CCRB complaint made against him.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) (Board Review 07) alleged that either PO Castillo or another unknown officer who he described as a slim black male in his late 20s with black hair and dressed in uniform—he did not recall which one—spoke discourteously to him. The investigation determined that solely three officers interacted with § 87(2)(b)—PO Castillo (Board Review 08), PO Stabile (Board Review 09), and PO Zachary Parker (Board Review 10) of the 34th Precinct. None of these officers match the description provided by § 87(2)(b). None of these officers acknowledged speaking discourteously to § 87(2)(b) nor did any of these officers acknowledge hearing an officer speak discourteously to § 87(2)(b) § 87(2)(g)

- § 87(2)(b) alleged that he was frisked solely by PO Castillo. PO Castillo denied frisking § 87(2)(b) but PO Zachary Parker of the 34th Precinct testified that PO Castillo frisked § 87(2)(b). Additionally, PO Stabile testified that he frisked § 87(2)(b) § 87(2)(g)

Allegation A – Force: Police Officer Juan Castillo used physical force against § 87(2)(b)

Allegation B – Discourtesy: Police Officer Juan Castillo spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) arrived outside of the 34th Precinct stationhouse while alcohol intoxicated. § 87(2)(b) testified that he walked to the stationhouse, and that he approached PO Castillo to ask him directions to the subway station. PO Castillo, PO Stabile, and PO Parker each testified that § 87(2)(b) arrived outside the stationhouse in a taxi, and each indicated that the taxi driver requested that the police assist in ejecting § 87(2)(b) from the taxi because § 87(2)(b) was uncooperative, refusing to provide a destination to the taxi driver. Nevertheless, it is undisputed that § 87(2)(b) eventually stood outside the stationhouse while PO Castillo stood outside the front door, and that § 87(2)(b) was not stopped or under arrest.

§ 87(2)(b) testified that he asked PO Castillo for directions. § 87(2)(b) alleged that when he asked PO Castillo for directions, PO Castillo pushed him on his left shoulder and told him to, “Get the fuck back.”

PO Castillo testified that he told § 87(2)(b) to go home, but he denied telling § 87(2)(b) to “get the fuck back,” and further denied using profanity at any point during the incident. Both PO Parker and PO Stabile denied hearing PO Castillo tell § 87(2)(b) to “get the fuck back,” and both denied hearing PO Castillo use profanity at any point during the incident. PO Castillo denied making physical contact with § 87(2)(b) until later in the incident, when PO Castillo acknowledged pushing § 87(2)(b) away from him. PO Castillo testified that he solely pushed § 87(2)(b) one time. This was corroborated by both PO Parker and PO Stabile.

§ 87(2)(g)

it is recommended that **Allegations A** and **B** be closed as **Unsubstantiated**.

Allegation C – Force: Police Officer Juan Castillo used physical force against § 87(2)(b)

It is undisputed that PO Castillo pushed § 87(2)(b) and that § 87(2)(b) fell to the ground as a result. § 87(2)(g)

§ 87(2)(b) testified that he was standing still with his hands out and open, palms up, just below shoulder height, and that he was asking PO Castillo why he was not helping him with directions. § 87(2)(b) alleged that PO Castillo grabbed him by the left wrist, forced his arm behind his back, stuck his leg in front of § 87(2)(b) and pushed him to the ground. § 87(2)(b) testified that he landed on his stomach, and that PO Castillo landed on top of his back.

PO Castillo testified that § 87(2)(b) repeatedly told him that he wanted to fight him, and that he removed his watch, indicating to PO Castillo that § 87(2)(b) was preparing to fight. This was corroborated by both PO Stabile and PO Parker.

PO Castillo testified that he approached § 87(2)(b) to determine if he was intoxicated, getting one to two feet away from § 87(2)(b). PO Castillo testified that § 87(2)(b) was solely standing, but he continued to say that he wanted to fight PO Castillo. PO Castillo testified that within seconds of approaching § 87(2)(b) PO Castillo created a distance between them by lightly pushing § 87(2)(b)'s chest, intending to move § 87(2)(b) backwards; § 87(2)(b) moved backwards, eventually falling on his buttocks. During his CCRB interview PO Castillo was asked if he pushed § 87(2)(b) to the ground, and PO Castillo paused for seven seconds before responding, "No, I was trying to create space between me and him." PO Castillo testified that he pushed § 87(2)(b) to create space, in the event that § 87(2)(b) was to get physical. PO Castillo testified that he had not made any verbal commands to § 87(2)(b) prior to pushing him, aside from repeatedly telling him to leave or to go home.

PO Parker testified that § 87(2)(b) walked towards him, PO Stabile, and PO Castillo. PO Parker testified that PO Castillo pushed § 87(2)(b) but that it was more of a guide, whereby PO Castillo maintained contact with § 87(2)(b) for approximately three seconds, and guided him against a nearby wall. PO Parker testified that § 87(2)(b) then appeared to trip over himself, falling on his buttocks.

PO Stabile testified that § 87(2)(b) walked towards PO Parker and PO Castillo as he was approaching § 87(2)(b) from the side. PO Stabile testified that he did not recall if either PO Parker or PO Castillo moved towards § 87(2)(b) or if they were standing still. PO Stabile testified that he believed that either PO Parker or PO Castillo pushed § 87(2)(b) although he did not see any officer do so. PO Stabile testified that he saw § 87(2)(b) stumble backwards and fall on his buttocks.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D – Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Officer Unidentified**.

Allegation E – Abuse of Authority: Police Officer Juan Castillo frisked § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Anthony Stabile frisked § 87(2)(b)

It is undisputed that § 87(2)(b) remained seated or lying on the sidewalk after he went to the ground. § 87(2)(b) alleged that PO Castillo frisked him, which was corroborated by PO Parker. PO

Stabile testified that he personally frisked § 87(2)(b) and that he did not recall any other officer doing so. PO Castillo denied frisking § 87(2)(b) or seeing any officer do so.

It is undisputed that § 87(2)(b) was never under arrest, and that at no point did the officers intend to arrest § 87(2)(b) or process him in the stationhouse. It is undisputed that marijuana was recovered from § 87(2)(b) § 87(2)(g). It is further undisputed that an ambulance was called for § 87(2)(b) either due to his intoxication or that § 87(2)(b) complained of wrist pain, or both.

PO Stabile testified that he frisked § 87(2)(b)'s waist and pockets to ensure that § 87(2)(b) did not have any weapons on his person. PO Stabile testified that the only factors which led him to believe that § 87(2)(b) might have a weapon was the fact that he was intoxicated, that he had been aggressive (saying he wished to fight officers), and that marijuana was recovered. PO Stabile did not see any bulges suggestive of a weapon, nor did he observe anything else which led him to believe that § 87(2)(b) might have a weapon. PO Stabile testified that the frisk yielded negative results for a weapon.

PO Parker testified that PO Castillo frisked § 87(2)(b) and although he did not recall specifically where, he said it was a "standard frisk." PO Parker testified that there was no specific indication that § 87(2)(b) had a weapon on his person other than § 87(2)(b)'s shirt was covering his waistband. PO Parker testified that there was nothing else which led him to believe § 87(2)(b) might have a weapon on his person, and he indicated that the frisk yielded negative results for a weapon.

To justify the frisk of an individual who is not under arrest, an officer must harbor reasonable suspicion that the individual is in possession of a weapon. People v. DeBour, 40 N.Y.2d 210 (1976). (Board Review 11). A frisk is authorized when the member of the service reasonably suspects the person is armed and dangerous. NYPD Patrol Guide, Section 212-11. (Board Review 12).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Substantiated**.

Allegation G – Abuse of Authority: Police Officer Juan Castillo searched § 87(2)(b)

It is undisputed that § 87(2)(b) possessed marijuana and that it was ultimately recovered by PO Castillo. § 87(2)(g).

§ 87(2)(b) alleged that after PO Castillo frisked him, he reached inside his rear pocket and removed a pill bottle containing marijuana.

PO Castillo denied ever reaching inside any of § 87(2)(b) pockets. This was corroborated by both PO Parker and PO Stabile. § 87(2)(g).

PO Castillo testified that the marijuana fell out of § 87(2)(b)'s pocket immediately after he fell to the ground. PO Parker, however, testified that after § 87(2)(b) fell to the ground, and after an ambulance was called, PO Parker handed § 87(2)(b) his sweatshirt and

that after putting it on, § 87(2)(b) leaned back on the ground, and the marijuana fell out. PO Stabile testified that he did not recall how long it was from the time that § 87(2)(b) fell to the ground before marijuana fell out of his pocket.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **Unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date